
Appeal Decision

Site visit made 11 August 2026

by **O Marigold BSc DipTP MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 18 September 2026

Appeal Ref: 6009443

Land East of Nordic Barn, Kilkhampton, Bude EX23 9HN

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Herman Sundberg against the decision of Cornwall Council.
 - The application Ref is PA26/00089.
 - The development proposed is for use of land for the siting of 3nos glamping pods, provision of hard standing, driveway access and installation of solar panel array.
-

Decision

1. The appeal is dismissed.

Preliminary Matters

2. I have taken the address of the site from the Council's Decision Notice, which better reflects the location than that used in the application form. The appellant has used the same address in the appeal form and so I am satisfied that no party would be prejudiced as a result.
3. Since the appeal was made, a revised National Planning Policy Framework (the Framework) has been published, on 17 August 2026. The Council and the appellant have had the opportunity to comment on this change in policy. I have determined the appeal using the current planning policy position.

Main Issues

4. The main issues are whether the proposal would accord with the spatial strategy of the Development Plan, in respect of:
 - its effect on the character and appearance of the area, and
 - its access to services and facilities.

Reasons

Character and Appearance

5. The site consists of parts of a field within attractive countryside. It is accessed off a rural lane, Stibb Road. As part of the wider site, there is a barn converted to a dwelling, together with a hard surfaced entrance and driveway, and an implement store. These features are located relatively close to the road. The surrounding area has only scattered development, and the site is beyond any settlement.
6. The site is within the Gooseham to Launcells Area of Great Landscape Value (AGLV). It is close to part of the Cornwall National Landscape (NL), also known as

an Area of Outstanding Natural Beauty (AONB), on the opposite side of Stibb Road. The Cornwall Character Area Study, August 2023, identifies the area as having an intact rural and pastoral landscape. The rolling and exposed nature of the site and its surroundings give an expansive rural character.

7. The application proposes the erection of three eco-friendly holiday pod buildings. They would be constructed of timber, and would have green roofs. The proposal includes a solar array to serve the buildings, together with the creation of a compacted gravel access drive, across parts of the field.
8. Policy 2 of the Cornwall Local Plan (CLP), adopted November 2016, seeks to maintain the dispersed pattern of development in Cornwall, and to provide homes based on the role and function of each place. Policy 3 only permits new housing in circumstances that do not apply here. These policies are relevant to the camping pods as they provide a form of housing, even if a condition were to be imposed requiring their use for holiday purposes.
9. CLP policy 5 supports new tourism accommodation of an appropriate scale for its location. CLP policies 2, 12 and 23 seek to conserve and enhance the natural landscape and the distinctive character of Cornwall, including the AGLV. Policy C1 of the Climate Emergency Development Plan Document (CEDP), adopted February 2023, has similar aims. CLP policy 3 also requires that the setting of AONBs is conserved and enhanced.
10. The proposed buildings would have a relatively small size and a low height. They would use natural materials, a reversible construction method, and have green roofs which would help to minimise their visual effects. They would also have a low density. Even so, the pods and the array would be located well away from the existing buildings. As a result, the proposal would result in appreciable new built form intruding into the undeveloped open countryside.
11. The proposed new main access drive would extend hard surfacing across the field from the entrance, with little relationship to other physical features. Consequently, its scale would have an intrusive and scarring effect on the landscape, on a permanent basis. The development would result in paraphernalia associated with the use, such as seating and barbeque areas, which would further domesticate the site and its surroundings.
12. The adverse effects of the proposal would be prominent in the landscape as well as being visible from publicly obtainable viewpoints, for example from Stibb Road. Landscaping could be secured by condition, and this is proposed as part of Biodiversity Net Gain (BNG). However, given the topography of the land, this would be unlikely to sufficiently soften or screen the development. Nor can landscaping be relied upon for example in winter months, when foliage is reduced.
13. On this basis, the proposal would harmfully erode the rural and pastoral landscape, contrasting with its soft, rolling character. Given the close proximity of the site to the NL, for the same reasons as given above, it would detract from the NL setting, harming its natural beauty.
14. Accordingly, the proposal would not accord with the spatial strategy of the Development Plan, in respect of the character and appearance of the area. It would therefore conflict with CLP policies 2, 3, 5, 12 and 23 and CEDP policy C1. I give this harm and conflict very substantial negative weight in the planning

balance. CLP policy 27 and CEDP policy T1 relate to transport and accessibility and so are not relevant to this main issue. I shall consider CLP policy 1 below.

Services and Facilities

15. CEDP policies C1 and T1 seek to maximise the ability of people to make trips by public transport and other sustainable modes of travel. This is to support walking and cycling for daily living, and to reduce greenhouse gas emissions. CLP policies 2 and 12 have similar aims, whilst policy 27 requires development to have suitable access. CLP policy 5 supports new tourist accommodation where it would be of an appropriate scale for its degree of accessibility by a range of transport modes. CLP policy 7 only permits housing in specific circumstances, none of which include the proposal.
16. The closest settlement to the site is Stibb, but this is small and has few if any facilities. The nearest location with a range of services is the town of Bude, around 4 miles away. Access to the town would require using country lanes which are narrow in places, and do not have continuous pavement or street lighting. As such, use of the roads by bike or on foot would be difficult, especially at night, in inclement weather, or for those of limited mobility. The same is true of public rights of way in the area.
17. Buses travel along Stibb Road, but the nearest stops are some distance from the site, and require the use of the road to reach them. In areas without fixed stops, I understand that buses may stop at other locations, if requested and safe to do so. However, bus drivers may not be willing to stop hereabouts given the narrow nature of the road and its 60mph speed limit. Holidaymakers unfamiliar with the area may well feel uneasy at relying on such an arrangement. In any case, bus services are few with just three in each direction on weekdays, and only one service in one direction on Saturdays, with none on Sundays.
18. It follows that future occupiers of the proposal would have few alternatives to the private car for accessing services and facilities. Patterns of movement associated with holiday use may be different when compared to principal home occupation, but I have little reason to believe that trips would necessarily be limited. Some occupiers may choose to use electric vehicles and/or to car share, but this is by no means guaranteed. In light of the above, the proposal would not limit the need to travel or maximise the ability of people to make trips by sustainable modes of transport.
19. Many examples of holiday parks and accommodation located in rural areas of Cornwall have been provided to me. Some of these are relatively close to the site, and are accessed from Stibb Road. These include Wooda Farm Holiday Park, a large site which I understand has received planning permission to expand. Two sites within the Bude rural area have been granted planning consent for three and ten camping pods respectively. Broad reference has been made to other decisions relating to similar uses.
20. These decisions are an important material consideration, as is the need for consistency. That said, I have only limited details of the circumstances involved in these cases, preventing useful comparison. Some of the cases pre-date the adoption of current Development Plan policy, as well as the new Framework. These decisions must be set against the need to properly apply planning policy.

Ultimately, I have reached my conclusions against the proposal and policy position before me.

21. For the reasons given above, the proposal would not accord with the spatial strategy of the Development Plan in respect of access to services and facilities. It would therefore conflict with CLP policies 2, 5, 7, 12 and 27, and CEDP policies C1 and T1. I give this harm and conflict very substantial negative weight in the planning balance. I find no additional conflict with CLP policy 3 in respect of this issue. I shall consider CLP policy 1 below.

Other Considerations

22. CLP policy 1 applies a presumption in favour of sustainable development which reflects an earlier version of the Framework. There is no dispute that the Council is unable to demonstrate an adequate supply of housing land. As such, the policy requires that permission is granted unless material considerations indicate otherwise, taking into account whether any adverse impacts of the proposal would significantly and demonstrably outweigh the benefits when assessed against the Framework, or if specific Framework policies indicate that development should be restricted.
23. Framework policy E4 supports the sustainable growth of businesses in rural areas including through well-designed new buildings. It recognises that such proposals may need to be located outside settlements, and may not be well served by public transport. Nevertheless, it makes clear that such proposals should take opportunities to use sites physically well-related to existing development, and must be appropriate in respect of their siting having regard to the character of its surroundings. Given my findings above, the proposal would not meet these requirements and so would conflict with policy E4.
24. Framework policy N2 requires proposals to contribute positively to the natural environment. Policy N4 makes clear that development within the setting of Protected Landscapes, including the NL, should be sensitively located and designed to avoid or minimise adverse impacts. In light of my conclusions above, the proposal would conflict with these aims and therefore with policies N2 and N4.
25. Framework policy CC2(1)(a) requires that proposals should support good access to facilities in order to limit the need to travel, including in respect of location. Policy TR3(1) requires that development is located where it can support sustainable patterns of movement and enable good accessibility for different users. Policy TR3(1)(e) recognises the constraints on connectivity opportunities in rural areas. Even so, given my conclusions above, the proposal would not accord with these policies.
26. The site is outside of any settlement, and so Framework policy S5 is engaged. This sets out types of development which should be approved unless the benefits of the proposal would be substantially outweighed by any adverse effects. Policy S5(1)(b) supports rural tourism development, albeit where a location outside a settlement is shown to be necessary.
27. Benefits of the development include economic contributions to the local area during construction, and from spending by holidaymakers. They also include renewable energy generation, electric vehicle charging, biodiversity improvements including through BNG, and social benefits. The appellant does not seek to place

undue reliance upon housing delivery matters. However, even taking into account the above advantages, I conclude that the benefits of the proposal would be substantially outweighed by the adverse effects that I have identified. Accordingly, policy S5 does not support it.

28. Overall, I conclude that the proposal would not accord with the policies of the Framework, read in the round. The Framework is a material consideration of critical importance and therefore weighs heavily against it. Similarly, in respect of CLP policy 1, the harm caused by the proposal would significantly and demonstrably outweigh its benefits. As such, it would conflict with CLP policy 1.

Conclusion

29. For the reasons given, I have found conflict with the Development Plan as a whole. The material considerations in this case, including the Framework, do not indicate a decision other than in accordance with the Development Plan. This leads me to conclude that the appeal should be dismissed.

O Marigold

INSPECTOR